

Court No. - 39

Case :- WRIT - C No. - 69816 of 2015

Petitioner :- Rajendra Kumar Agarwal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Dilip Gupta,J.

Hon'ble Mukhtar Ahmad,J.

It is contended by the learned counsel for the petitioner that without a final assessment order have been passed, the respondents have issued a demand notice to the petitioner.

Sri Baleshwar Chaturvedi, learned counsel appearing for respondents prays for and is granted one week time to seek instructions.

Place this writ petition as fresh on 13 January 2016.

Order Date :- 5.1.2016

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(Mukhtar Ahmad, J.) (Dilip Gupta, J.)

Court No. - 9

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Respondent :- State Of U.P. And 2 Others

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Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Huluvadi G. Ramesh,J.

Hon'ble Shamsheer Bahadur Singh,J.

Heard learned counsel for the petitioner as well as learned counsel appearing for the respondents and perused the record.

By way of the present petition, the petitioner has sought for issuance of a writ or direction in the nature of certiorari for quashing the impugned demand notice dated 21.11.2015 issued by the respondent no.2-Executive Engineer Electricity Distribution, Division-II, Firozabad and also a direction in the nature of mandamus directing the respondent no.1 to enquire into the matter from the Committee under Clause 8.0 of U.P. Electricity Supply Code, 2005 with a further prayer to restrain the respondent no.2 from disconnecting electric supply of the petitioner as well as recovering sum in question from the petitioner in any manner.

It appears that in respect of supply of electricity, certain mischief has been committed by the petitioner and the respondent no. 2 on assessing the theft of the electricity, imposed a penalty to the tune of Rs.3,31,957/- upon the petitioner.

The grievance of the petitioner is that such a bill raised by the respondent no.2 is without any basis and without any compliance of the provisions of Electricity Act, hence, present writ petition challenging the order of penalty.

Since, in the present petition, disputed question of facts are involved, no interference is called for in writ jurisdiction. The relief claimed by the petitioner by filing the present petition cannot be entertained by this Court.

However, for the redressal of his grievance, another 15 days' time is given to the petitioner to file an appeal before the Appellate authority and appellate authority is directed to dispose of the matter, in accordance with law, within a period of three months from the date of filing of the appeal.

The petitioner is directed to deposit Rs.2,00,000/- before the appellate authority and the payment of the remaining amount shall be subject to the result of the appeal.

With the above observations, the writ petition is disposed of.

Order Date :- 3.3.2016

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